



DECISION

Complaint No. : POS/5298/2021/HYD/203

Name and address of the complainant : Mr. Parwaiz Ansari s/o Muhammad Nisar Ahmed
R/o H. No: 25, Block-A, Shah Colony, Unit No: 11
Latifabad, Hyderabad.

Name of the Agency Complained against : Regional Director, Sindh Building Control Authority, Hyderabad.

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : **COMPLAINT AGAINST ILLEGAL CONSTRUCTION OF
MARRIAGE HALL ON A RESIDENTIAL PLOT NO.C-33,
BLOCK-3, UNIT-11, LATIFABAD HYDERABAD**

Complaint

Mr. Parwaiz Ansari filed an online complaint dated 11.10.2021 wherein he alleged illegal construction of a marriage hall on a residential plot for commercial use without approval of building plan of Sindh Building Control Authority which has caused nuisance in the locality. Aggrieved by that, he solicited intervention of this Institution.

Proceedings

2. The case was admitted u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) after receiving mandatory Affidavit on Form "A" and other relevant documents and by condoning the delay.

3. This office issued notice dated 08.11.2021 to the Regional Director, Sindh Building Control Authority, Hyderabad for report followed by hearing proceedings. The Deputy Director, SBCA Taluka Latifabad Hyderabad informed vide letters dated 30.08.2022 and 27.09.2022 that the SBCA had approved a building plan of Ground Floor only on a residential plot No: C/33, Block-E, Unit no: 11, Latifabad Hyderabad in favour of Mr. Muhammad Maroof Khan s/o. Riaz Muhammad Khan.

Site Visits

4. In pursuance to orders of the Honourable Ombudsman Sindh, the site was visited twice on 14.04.2022 and 26.12.2023 in the presence of Mr. Uris Dawach, Deputy Director, SBCA, Hyderabad and Mr. Muhammad Maroof Khan, opponent but the complainant absented.

During site inspection, the Deputy Director, SBCA Hyderabad informed that proposed building plan for ground floor (residential) over plot No: C/33, Block-E, Unit No: 11, Latifabad was approved by SBCA in favour of opponent/owner but he violated the approved building plan. The SBCA issued notices to the owner in this regard and later-on, the plot in question was sealed by the SBCA on account of doing commercial activities. Subsequently, the plot was converted into commercial use by the Director, (P&DC), HDA and Director, Land HMC on the request of owner of the plot.

(2)

5. The case was heard on various dates. The Director Planning, H.D.A. informed vide letter dated 10.03.2025 that the H.D.A. has approved the conversion of plot No.33, type B (600 sq yards) block-E, Unit No.11, Latifabad from residential to commercial use vide orders dated 10.02.2023 but he failed to submit the fulfillment of rules/procedure as specified under law for conversion of plot from residential to commercial use.

Findings

6. The Investigation of the case established mal-administration against the agencies i.e. H.D.A. and HMC on their failure to provide required information as prescribed under laws/rules for conversion of plot from residential to commercial use and fulfillment of required procedure for commercialization.

Decision

7. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date), I, hereby direct the Additional Chief Secretary, Local Government Department for conducting an enquiry into the conversion of plot from residential to commercial use with regard to fulfilment of legal procedure and take further action on the basis of findings of enquiry report under intimation to this office. The compliance report shall be submitted to this office in 60 days.

8. This also disposes of another complaint bearing No: POS/487/2022/HYD/67 having same grievance filed by the same complainant on the same subject against the same Agency.

Given under my hand and seal of the office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 05th December, 2025